May 12, 2025

Mr. Stuart Bender
Designated Agency Ethics Official
U.S. Department of Agriculture
Washington, DC 20250

Dear Mr. Bender:

The purpose of this letter is to describe the steps that I will take to avoid any actual or apparent conflict of interest in the event that I am confirmed for the position of Under Secretary for Farm Production and Conservation, Department of Agriculture. It is my responsibility to understand and comply with commitments outlined in this agreement.

SECTION 1 – GENERAL COMMITMENTS

As required by the criminal conflicts of interest law at 18 U.S.C. § 208(a), I will not participate personally and substantially in any particular matter in which I know that I have a financial interest directly and predictably affected by the matter, or in which I know that a person whose interests are imputed to me has a financial interest directly and predictably affected by the particular matter, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2). I understand that the interests of the following persons are imputed to me:

- Any spouse or minor child of mine;
- Any general partner of a partnership in which I am a limited or general partner;
- Any organization in which I serve as an officer, director, trustee, general partner, or employee, even if uncompensated; and
- Any person or organization with which I am negotiating or have an arrangement concerning prospective employment.

In the event that an actual or potential conflict of interest arises during my appointment, I will consult with an agency ethics official and take the measures necessary to resolve the conflict, such as recusal from the particular matter or divestiture of an asset.

If I have a managed account or otherwise use the services of an investment professional during my appointment, I will direct the account manager or investment professional to obtain my prior approval on a case-by-case basis for the purchase of any assets other than cash, cash equivalents, investment funds that qualify for the regulatory exemption for diversified mutual funds and unit investment trusts at 5 C.F.R. § 2640.201(a), obligations of the United States, or municipal bonds.

I will receive a live ethics briefing from a member of the ethics office after my confirmation but not later than 15 days after my appointment pursuant to the ethics program regulation at 5 C.F.R. § 2638.305. Within 90 days of my confirmation, I will submit my Certification of Ethics Agreement Compliance which documents my compliance with this ethics agreement.

I will not modify this ethics agreement without your approval and the approval of the U.S. Office of Government Ethics pursuant to the ethics agreement requirements contained in the financial disclosure regulation at 5 C.F.R. § 2634.803(a)(4).

SECTION 2 – OSBORNE & BARR COMMUNICATIONS

Upon confirmation, I will resign from my position with Osborne & Barr Communications, Inc. Pursuant to the impartiality regulation at 5 C.F.R. § 2635.502, for a period of one year after my resignation from this entity, I will not participate personally and substantially in any particular matter involving specific parties in which I know that this entity is a party or represents a party, unless I am first authorized to participate, pursuant to 5 C.F.R. § 2635.502(d).

SECTION 3 – FORDYCE FARMS

My spouse and I own Fordyce Farms, an unincorporated farming entity in Harrison County, Missouri, which operates on land that it owns and land that it leases. Fordyce Farms participates in the USDA Conservation Reserve Program (CRP) and receives annual payments through this USDA program. Fordyce Farms also participates in the USDA Agriculture Risk Coverage (ARC) and Price Loss Coverage (PLC) programs and could receive annual payments through these USDA programs. These programs are administered by USDA through the Commodity Credit Corporation in which I will serve as an officer and member of the Board. We also currently have insurance policies under the USDA Risk Management Agency (RMA).

Prior to assuming the duties of my office, I will transfer 100% of the business operations of Fordyce Farms, including assigning any contractual rights or responsibilities associated with Fordyce Farms and any leases for farmland, to a newly established limited liability company. Before I assume the duties of my office, I will transfer ownership of the limited liability company to my adult non-dependent children. I will not hold a position with this entity and will not provide services material to the production of income. I will continue to own the real property currently used by Fordyce Farms, which will be leased to the newly established limited liability company on a fixed-cash basis. I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the ability or willingness of the LLC to make the rent payments to me, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1).

I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on my financial interest in the farmland, unless I first obtain a written waiver pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2). Finally, in the event of a disaster in Harrison County, Missouri, I will not participate in any way in a decision as to whether to designate Harrison County as entitled to disaster relief.

SECTION 4 – PASEO-CARGILL ENERGY JOINT VENTURE

Upon confirmation, I will resign from my position with the Paseo-Cargill Energy Joint Venture. Pursuant to the impartiality regulation at 5 C.F.R. § 2635.502, for a period of one year

after my resignation, I also will not participate personally and substantially in any particular matter involving specific parties in which I know Paseo-Cargill Energy Joint Venture, is a party or represents a party, unless I am first authorized to participate, pursuant to 5 C.F.R. § 2635.502(d). I will divest my interests in Paseo Biofuels, LLC., as soon as practicable but not later than 90 days after my confirmation. I will not participate personally and substantially in any particular matter that to my knowledge has a direct and predictable effect on the financial interests of this entity until I have divested it, unless I first obtain a written waiver, pursuant to 18 U.S.C. § 208(b)(1), or qualify for a regulatory exemption, pursuant to 18 U.S.C. § 208(b)(2). I have verified that I will be able to carry out the divestiture within the timeframe described above.

SECTION 5 – UNIVERSITY OF MISSOURI

I resigned from my position with the University of Missouri, College of Agriculture in December 2024. Pursuant to the impartiality regulation at 5 C.F.R. § 2635.502, for a period of one year after my resignation from this entity, I will not participate personally and substantially in any particular matter involving specific parties in which I know that this entity is a party or represents a party, unless I am first authorized to participate, pursuant to 5 C.F.R. § 2635.502(d).

SECTION 6 - PUBLIC POSTING

I have been advised that this ethics agreement and the Certification of Ethics Agreement Compliance will be posted publicly, consistent with the public information law at 5 U.S.C. § 552, on the website of the U.S. Office of Government Ethics with ethics agreements of other Presidential nominees who file public financial disclosure reports.

Sincerely,

Richard Fordyce